

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

Filed:

A.D. an infant by her mother and natural guardian, SARA SAKO,  
and SARA SAKO, individually,

Index No.:

Plaintiffs,

Plaintiff designates NEW  
YORK County as the place  
of trial.

-against-

**S U M M O N S**CITY OF NEW YORK, P.O. NOHILLY, P.O. HOT, and "JOHN  
DOES" 1-5, fictitious names whose identities are not yet known  
and intended to be the unnamed police officers,The basis of venue is:  
Place of Occurrence

Defendants.

**To the above-named Defendants:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: Astoria, New York  
June 23, 2021  
By: Alex Diaz, Esq.  
**SACCO & FILLAS, LLP**  
Attorneys for Plaintiffs  
31-19 Newtown Avenue  
Seventh Floor  
Astoria, New York 11102  
(718) 746-3440  
Our File # 24325-20

**DEFENDANTS:****CITY OF NEW YORK**

Comptroller's Office of City of New York  
Manhattan Municipal Building  
1 Centre Street, Room 1220  
New York, New York 10007

**P.O. NOHILLY BADGE #18482**

1 Police Plaza  
New York, New York 10007

**P.O. HOT**

1 Police Plaza  
New York, New York 10007

**NEW YORK CITY POLICE DEPARTMENT**

"JOHN DOES" 1-5, fictitious names whose identities  
are not yet known and intended to be the unnamed police officers  
32<sup>ND</sup> Precinct  
1 Police Plaza  
New York, New York 10007

***FORWARD THIS IMMEDIATELY TO YOUR ATTORNEY OR INSURANCE COMPANY***

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

Index No.:

A.D. an infant by her mother and natural guardian, SARA SAKO,  
and SARA SAKO, individually,

**VERIFIED  
COMPLAINT**

Plaintiffs,

-against-

CITY OF NEW YORK, P.O. NOHILLY, P.O. HOT, and "JOHN  
DOES" 1-5, fictitious names whose identities are not yet known  
and intended to be the unnamed police officers,

Defendants.

Plaintiffs, by their attorneys, SACCO & FILLAS, LLP, as and for their Verified Complaint,  
respectfully allege, upon information and belief:

1. Infant Plaintiff, A.D., at all times herein mentioned was and still is a resident of the County of Bronx, City and State of New York.
2. Plaintiff SARA SAKO, at all times herein mentioned was and still is a resident of the County of Bronx, City and State of New York.
3. At all times herein mentioned, defendant CITY OF NEW YORK, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
4. Defendant, P.O. NOHILLY, at all times herein mentioned was and still is a resident of the State of New York.
5. Defendant, P.O. HOT, at all times herein mentioned was and still is a resident of the State of New York.
6. On March 9, 2020, defendant, CITY OF NEW YORK, owned, operated, maintained and controlled the New York City Police Department.
7. On March 9, 2020, defendant, CITY OF NEW YORK, employed defendant P.O. NOHILLY.
8. On April 6, 2020, defendant, CITY OF NEW YORK, employed defendant P.O. HOT.

**NOTICE OF CLAIM**

9. Prior to the commencement of this action, a notice of claim in writing was served on behalf of infant plaintiff A.D., upon Defendant, City of New York in accordance with Section 50-e of the General Municipal Law.
10. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of infant plaintiff, A.D., upon Defendant, City of New York in accordance with Section 50-e of the General Municipal Law.
11. Within ninety days (90) of March 09, 2020, a notice of claim in writing was served on behalf of infant plaintiff, A.D., upon City of New York in accordance with Section 50-e of the General Municipal Law.
12. Prior to the commencement of this action, notice of the intention of A.D. to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of infant plaintiff, A.D. upon City of New York.
13. Although more than thirty (30) days have elapsed since service of such notice of claim, City of New York neglected and has refused to pay said claim or adjust same.
14. A hearing pursuant to General Municipal Law 50-h was held on May 25, 2021.
15. This action is commenced timely pursuant to Executive Order 202.78.

**AS AND FOR A FIRST CAUSE OF ACTION FOR MALICIOUS PROSECUTION**

16. Infant plaintiff, A.D., repeats, reiterates and realleges the above paragraphs of the Complaint as if fully set forth at length herein.
17. On or about March 09, 2020, the infant plaintiff A.D. was wrongfully arrested.
18. On or about March 09, 2020, the infant plaintiff A.D. was wrongfully arrested and detained against her own will.
19. On or about March 09, 2020, the infant plaintiff A.D. was wrongfully arrested and detained against her own will and was not informed why she was being arrested.
20. At all times herein mentioned, infant plaintiff A.D., was maliciously and without probable

reason or cause, inculpated in criminal actions in which she did not participate, by City of New York.

21. At all times herein mentioned, the defendant City of New York, maliciously instituted judicial proceedings without probable cause for doing so, which forced Sara Sako, mother and natural guardian of infant plaintiff A.D. to expend money.
22. The cause of action for malicious prosecution arose on or about June 10, 2020, with the dismissal of the criminal action against infant plaintiff, A.D. in the County of Bronx, City and State of New York.
23. The charges were lodged against the infant plaintiff without probable cause or justification, and were designed to harass and intimidate the plaintiff, to cause the plaintiff, Sara Sako, to expend great sums of money on behalf of infant plaintiff, to embarrass the plaintiffs in the community, and among their friends and relatives, employer, and co-employees, and to subject infant plaintiff, A.D. to a possible term of imprisonment.
24. By reason of the malicious prosecution, infant plaintiff A.D. was deprived of her liberty and was subjected to scorn and ridicule. Infant Plaintiff suffered pain and distress of mind and body. Infant plaintiff suffered shock and embarrassment. Infant plaintiff was arrested, detained, and was required to spend large sums of money to defend herself against the prosecution in the Criminal Court of City of New York, and in the proceeding before the State. Plaintiffs suffered and were degraded in the esteem of the community.
25. The defendant's conduct constituted malicious prosecution on the part of the defendant against the infant plaintiff A.D., and this malicious prosecution has caused the infant plaintiff A.D. to undergo extreme mental pain and anguish, humiliation, and damage to her reputation.
26. This malicious prosecution was encouraged, aided, abetted, and incited voluntarily and willfully by the defendant, City of New York.
27. The proceeding was prosecuted with actual malice against the infant plaintiff, A.D.
28. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil

Practice Law and Rules.

29. Infant plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendant, City of New York in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION FOR ABUSE OF PROCESS**

30. Infant plaintiff, A.D., repeats, reiterates and realleges the above paragraphs of the Complaint as if fully set forth at length herein.
31. The defendant herein, CITY OF NEW YORK wrongfully and maliciously and with intent to injure infant plaintiff, A.D., prosecuted a criminal action against the infant plaintiff.
32. By reason of the foregoing abuse of process infant plaintiff A.D. was deprived of her liberty, suffered pain and distress of mind and body and sustained significant emotional pain and suffering.
33. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the infant plaintiff.
34. Infant plaintiff A.D., because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendant, CITY OF NEW YORK in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION FOR WRONGFUL ARREST**

35. Plaintiffs repeat, reiterates and realleges the above paragraphs of the Complaint as if fully set forth at length herein.
36. Specifically, on March 09, 2020, infant plaintiff, A.D. was wrongfully arrested.
37. On or about March 09, 2020, the infant plaintiff A.D. was wrongfully arrested and detained against her own will.
38. On or about March 09, 2020, the infant plaintiff A.D. was wrongfully arrested and detained against her own will and was not informed why she was being arrested.
39. The charges were lodged against the infant plaintiff A.D., without probable cause or

justification, and were designed to harass and intimidate the infant plaintiff, which forced Sara Sako, to expend great sums of money on behalf of infant plaintiff, A.D., to embarrass the plaintiffs in the community, and among their friends and relatives, employer, and co-employees, and to subject plaintiff to a possible term of imprisonment.

40. The defendant, CITY OF NEW YORK's, conduct constituted malicious prosecution on the part of the defendant against the infant plaintiff, A.D., and this malicious prosecution has caused the infant plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to her reputation.
41. At all times herein mentioned, infant plaintiff A.D., was maliciously and without probable reason or cause, inculpated in criminal actions in which she did not participate, by City of New York.
42. At all times herein mentioned, the defendant City of New York, maliciously instituted judicial proceedings without probable cause for doing so, which forced plaintiff, Sara Sako, to expend great sums of money on behalf of infant plaintiff, A.D.
43. The proceeding was prosecuted with actual malice against the infant plaintiff, A.D.
44. By reason of the wrong arrest, infant plaintiff A.D., was deprived of her liberty and was subjected to scorn and ridicule. Plaintiff suffered pain and distress of mind and body and sustained significant emotional pain and suffering. Plaintiff suffered shock and embarrassment. Plaintiff was arrested, detained, fingerprinted, photographed, and was required to spend large sums of money to defend herself against the prosecution in New York County, and in the proceeding before the State. Plaintiffs suffered losses and were degraded in the esteem of the community.
45. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.
46. The defendant, CITY OF NEW YORK's, conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of infant plaintiff, A.D.

as a result of the defendant's malicious prosecution.

47. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the infant plaintiff, A.D.
48. Infant plaintiff, A.D., because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, City of New York in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION**

49. Infant Plaintiff repeats and realleges each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.
50. That the aforesaid conduct on the part of the defendants, CITY OF NEW YORK, P.O. NOHILLY and P.O. HOT, and each of them, constituted a violation of infant plaintiff, A.D.'s, civil rights under 42 USC 1983 in that the plaintiff was deprived of his rights, privileges and immunities secured to him by the Constitution and laws of the U.S.A. and the New York State Constitution by one who under color of a statute or regulation of a state, caused the infant plaintiff to be so deprived.
51. That the aforesaid abuse of process on the infant plaintiff by the defendants, and each of them, and the subsequent false arrest and imprisonment of the infant plaintiff by the defendants, deprived the infant plaintiff of the constitutional right to bodily security and liberty under the Fourteenth Amendment to the United States Constitution, and was an unreasonable physical seizure of the infant plaintiff under the Fourth Amendment to the United States Constitution.
52. That as a result of the aforesaid occurrence, the infant plaintiff A.D., was caused to and did sustain severe, serious and protracted injuries to her person and body.
53. Due to defendant's negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.
54. That said incident and resulting injuries to the infant plaintiff, A.D., were caused solely as a result of the unintentional consequence of an intentional act on the part of the arresting



officers, without any culpable conduct on the part of the infant plaintiff, A.D., contributing thereto.

55. That as a result of the foregoing, infant plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR  
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

56. Plaintiffs repeat and reallege each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.
57. Defendants intentionally and deliberately inflicted emotional distress on infant plaintiff, A.D., by maliciously prosecuting infant plaintiff, or by abusing the lawful process by unlawful purpose, or by violating infant plaintiff, A.D.'s constitutional rights, or by falsely arresting and imprisoning the infant plaintiff, by conspiring against infant plaintiff, or by interfering with infant plaintiff's state civil rights by threats, coercion, or intimidation, or knew or should have known that emotional distress was the likely result of their conduct.
58. Defendants' conduct was extreme and outrageous, beyond all possible bounds of decency and utterly intolerable in a civilized community.
59. The actions of the Defendants, and each of them, were the cause of A.D.'s distress.
60. Infant plaintiff, A.D., is a reasonable person.
61. The emotional distress sustained by infant plaintiff, A.D. was severe and of a nature that no reasonable person could be expected to endure. (Agis v. Howard Johnson Co., 371 Mass. 140, 145 (1976).
62. As a result of the Defendants' extreme and outrageous conduct, infant plaintiff was, is, and, with a high degree of likelihood, will continue to be emotionally distressed due to the intentional exclusion. ("Extreme and outrages conduct is not required if the emotional distress resulted from the commission of another tort." American Velodur Metal, Inc. v. Schinabek, 20 Mass.App.Ct. 460, 470-471 (1985).

63. Defendant CITY OF NEW YORK is liable under the doctrine of *respondeat superior*.
64. As a result of the Defendants' extreme and outrageous conduct, infant plaintiff has suffered and will continue to suffer mental pain and anguish, severe emotional trauma, embarrassment, and humiliation.
65. Due to defendants' negligence, and each of them, infant plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION**

66. Infant Plaintiff repeats and realleges each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.
67. At all times herein mentioned, A.D. was lawfully upon Lenox Avenue, between 136<sup>th</sup> Street and 137<sup>th</sup> Street, County of New York, City and State of New York.
68. That on or about March 09, 2020, while the plaintiff, A.D., was lawfully on Lenox Avenue, between 136<sup>th</sup> Street and 137<sup>th</sup> Street, County of New York, City and State of New York, when infant plaintiff, A.D., was caused to be struck, continuously and repeatedly about her person by defendants, CITY OF NEW YORK, P.O. NOHILLY, P.O. HOT, and "JOHN DOES" 1-5, fictitious names whose identities are not yet known and intended to be the unnamed police officers.
69. Solely as a result of the defendants' negligence, carelessness and recklessness, infant plaintiff, A.D. was caused to suffer severe and serious personal injuries to mind and body, and further, that A.D. was subjected to great physical pain and mental anguish.
70. Defendants' acts caused infant plaintiff, A.D. to apprehend and/or fear unfriendly contact.
71. A reasonable person in the same circumstances as infant plaintiff would have apprehended and/or feared unfriendly contact.
72. Defendants, P.O. NOHILLY, P.O. HOT, and "JOHN DOES" 1-5, fictitious names whose identities are not yet known and intended to be the unnamed police officers, assaulted and battered, infant plaintiff A.D.

73. The assault, as aforesaid, was within the scope of Defendants P.O. NOHILLY, P.O. HOT, and "JOHN DOES" 1-5, fictitious names whose identities are not yet known and intended to be the unnamed police officers', employment.
74. The Defendants' assaulted infant plaintiff, A.D.
75. Infant plaintiff, A.D., was thereby caused to be severely injured on Mach 9, 2020.
76. Defendant CITY OF NEW YORK is liable under the doctrine of *respondeat superior*.
77. The aforesaid occurrence was caused by the Defendants, and each of them, without any culpable conduct on the part of infant plaintiff, A.D.
78. Due to defendants' assault, infant plaintiff, A.D., is entitled to damages.

**AS AND FOR AN SEVENTH CAUSE OF ACTION**

79. Infant Plaintiff repeats and realleges each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.
80. Defendants, CITY OF NEW YORK, P.O. NOHILLY, P.O. HOT, and "JOHN DOES" 1-5, fictitious names whose identities are not yet known and intended to be the unnamed police officers' acts were intended to make contact with infant plaintiff, A.D.
81. Defendants CITY OF NEW YORK, P.O. NOHILLY, P.O. HOT, and "JOHN DOES" 1-5, fictitious names whose identities are not yet known and intended to be the unnamed police officers made unauthorized contact with infant plaintiff, A.D.
82. That on March 9, 2020, Defendants P.O. NOHILLY, P.O. HOT, and "JOHN DOES" 1-5, fictitious names whose identities are not yet known and intended to be the unnamed police officers, battered infant plaintiff, A.D.
83. The battery as aforesaid, occurred while acting within the scope of Defendants, P.O. NOHILLY, P.O. HOT, and "JOHN DOES" 1-5, fictitious names whose identities are not yet known and intended to be the unnamed police officers' employment.
84. Defendant CITY OF NEW YORK is liable under the doctrine of *respondeat superior*.
85. Infant plaintiff, A.D. was thereby caused to be severely injured on March 09, 2020.
86. Due to defendants' battery, plaintiff A.D. is entitled to damages.

**AS AND FOR AN EIGHTH CAUSE OF ACTION**

87. Infant Plaintiff repeats and realleges each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.
88. At all times herein mentioned, the person of Defendants P.O. NOHILLY, P.O. HOT, and "JOHN DOES" 1-5, fictitious names whose identities are not yet known and intended to be the unnamed police officers, negligently, carelessly and recklessly came into harmful contact with the person of infant plaintiff, A.D. at t Lenox Avenue, between 136<sup>th</sup> Street and 137<sup>th</sup> Street, County of New York, City and State of New York.
89. Infant plaintiff, A.D. was thereby caused to be injured on March 09, 2020.
90. Defendant CITY OF NEW YORK is liable under the doctrine of *respondeat superior*.
91. As a result of the above, infant plaintiff was seriously injured, both physically and psychologically, causing her to incur substantial medical and hospital expenses, and continuous pain and suffering, all to his damage in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.
92. Due to defendants' negligence, carelessness, and recklessness, infant plaintiff is entitled to damages.

**AS AND FOR AN NINTH CAUSE OF ACTION**

93. Infant plaintiff, repeats, reiterates and realleges each and every Cause of action contained in the above-numbered paragraphs as though the same were set forth herein at length.
94. That said incident of assault and resulting injuries, in part or in whole, to the infant plaintiff, A.D., were caused solely as a result of the unintentional consequence of an intentional act(s) on the part of the defendants, CITY OF NEW YORK, P.O. NOHILLY, P.O. HOT, and "JOHN DOES" 1-5, fictitious names whose identities are not yet known and intended to be the unnamed police officers, without any culpable conduct on the part of the infant plaintiff, contributing thereto.
95. By reason of the foregoing, infant plaintiff, has been damaged in an amount which exceeds the jurisdictional limitation of all lower courts which would otherwise have jurisdiction.

**AS AND FOR AN TENTH CAUSE OF ACTION**

96. Infant plaintiff, repeats, reiterates and realleges each and every Cause of action contained in the above-numbered paragraphs as though the same were set forth herein at length.
97. That said incident of battery and resulting injuries, in part or in whole, to the infant plaintiff, A.D., were caused solely as a result of the unintentional consequence of an intentional act(s) on the part of the defendants, CITY OF NEW YORK, P.O. NOHILLY, P.O. HOT, and "JOHN DOES" 1-5, fictitious names whose identities are not yet known and intended to be the unnamed police officers, without any culpable conduct on the part of the infant plaintiff, contributing thereto.
98. By reason of the foregoing, infant plaintiff, has been damaged in an amount which exceeds the jurisdictional limitation of all lower courts which would otherwise have jurisdiction.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION**

99. Plaintiff, Sara Sako, repeats, reiterates and realleges each and every cause of action contained in the above-numbered paragraphs as though the same were set forth herein at length.
100. At all times herein before mentioned, SARA SAKO, is the mother and natural guardian of infant plaintiff, A.D., and as such, is entitled to the services of A.D.
101. By reason of the negligence, carelessness and recklessness of defendants herein, their agents, servants, employees, contractors and/or licensees, plaintiff SARA SAKO, was deprived of the aforesaid services of the infant plaintiff, A.D., was required to spend sums of money for the medical, psychological and psychiatric diagnosis, treatment and care of infant plaintiff, A.D., and was, and will continue to be, rendered unable to perform her normal activities and duties and has sustained a resultant loss therefrom.
102. Defendants, CITY OF NEW YORK, P.O. NOHILLY, P.O. HOT, and "JOHN DOES" 1-5, fictitious names whose identities are not yet known and intended to be the unnamed police officers, are liable to plaintiff, Sara Sako, for all the damages, costs, expenses, attorney's fees and penalties provided by the Federal, State and Local Statute(s), Rule(s) and Regulation(s).

**AS AND FOR AN TWELFTH CAUSE OF ACTION**

103. Plaintiffs, repeats, reiterates and realleges each and every cause of action contained in the above-numbered paragraphs as though the same were set forth herein at length.
104. The conduct of Defendants, and each of them, was so willful, wanton, malicious, reckless and in such disregard for the consequences as to reveal a conscious indifference to the clear risk of death or serious bodily injury and merits the imposition of punitive damages.
105. That as a result of the aforesaid, the infant plaintiff, sustained serious, physical, mental and/or emotional injuries, permanent in nature, as well as other damages.
106. By reason of the above, Plaintiffs bring this action for damages, general, special and punitive, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**WHEREFORE**, the plaintiffs demand:

A. Judgment awarding damages on the first cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

B. Judgment awarding damages on the second cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

C. Judgment awarding damages on the third cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

D. Judgment awarding damages on the fourth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

E. Judgment awarding damages on the fifth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

F. Judgment awarding damages on the sixth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

G. Judgment awarding damages on the seventh cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

H. Judgment awarding damages on the eighth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

I. Judgment awarding damages on the ninth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

J. Judgment awarding damages on the tenth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

K. Judgment awarding damages on the eleventh cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

L. Judgment awarding damages on the twelfth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

M. Interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

**WHEREFORE**, the plaintiff demands judgment awarding damages and punitive damages, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest and the costs and disbursements of this action, and such other and further relief as to this Court seems just and proper.

Dated: Astoria, New York  
June 23, 2021

  
\_\_\_\_\_  
By: Alex Diaz, Esq.  
SACCO & FILLAS, LLP  
Attorneys for Plaintiffs

31-19 Newtown Avenue  
Seventh Floor  
Astoria, New York 11102  
(718) 746-3440  
Our File # 24325-20



SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

Index No.:

A.D. an infant by her mother and natural guardian, SARA SAKO,  
and SARA SAKO, individually,

**ATTORNEY'S  
VERIFICATION**

Plaintiffs,

-against-

CITY OF NEW YORK, P.O. NOHILLY, P.O. HOT, and "JOHN  
DOES" 1-5, fictitious names whose identities are not yet known  
and intended to be the unnamed police officers,

Defendants.

Alex Diaz, an attorney duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

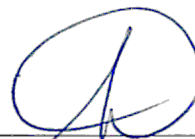
I am of the firm of SACCO & FILLAS, LLP, the attorneys of record for the plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because she is not in the County of Queens, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: Astoria, New York  
June 23, 2021



Alex Diaz, Esq.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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A.D. an infant by her mother and natural guardian, SARA SAKO, and SARA SAKO, individually,

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-against-

CITY OF NEW YORK, P.O. NOHILLY, P.O. HOT, and "JOHN DOES" 1-5, fictitious names  
whose identities are not yet known and intended to be the unnamed police officers,

Defendants.

**SUMMONS & VERIFIED COMPLAINT**

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: Astoria, NY  
June 23, 2021

Signature: 

By: Alex Diaz, Esq.

**SACCO & FILLAS, LLP**

Attorneys for Plaintiff  
A.D. & Sara Sako  
31-19 Newtown Avenue  
Seventh Floor  
Astoria, New York 11102  
(718) 746-3440  
Our File # 24325-20